

Court No. - 32

Case :- WRIT - C No. - 32323 of 2023

Petitioner :- Smt. Neelam

Respondent :- State Of U.P. Through Secretary Electricity Department Luckn

Counsel for Petitioner :- Mohd. Shahanshah Khan

Counsel for Respondent :- C.S.C.

Hon'ble Salil Kumar Rai,J.

Hon'ble Surendra Singh-I,J.

On a request made by the counsel for the petitioner, the matter is adjourned for the day.

Put up again as fresh on **28.9.2023** before appropriate Bench.

The matter shall not be treated as tied up or part heard to this Bench.

Order Date :- 21.9.2023

Anurag/-

Court No. - 40

Case :- WRIT - C No. - 32323 of 2023

Petitioner :- Smt. Neelam

Respondent :- State Of U.P. Through Secretary Electricity
Department Luckn

Counsel for Petitioner :- Mohd. Shahanshah Khan

Counsel for Respondent :- C.S.C.

Hon'ble Mahesh Chandra Tripathi,J.

Hon'ble Prashant Kumar,J.

1. Prima facie, we are of the considered opinion that the petitioner is being unnecessarily harassed by the concerned respondent-Department.

2. Learned counsel for the respondent-Purvanchal Electricity Distribution Nigam Limited states that all remedial measures would be taken, in case, one indulgence is extended by this Court.

3. On his request, matter is passed over.

4. Put up this matter again on 10.10.2023 as fresh.

Order Date :- 3.10.2023

Manish Himwan

Court No. - 40

Case :- WRIT - C No. - 32323 of 2023

Petitioner :- Smt. Neelam

Respondent :- State Of U.P. Through Secretary Electricity
Department Luckn

Counsel for Petitioner :- Mohd. Shahanshah Khan

Counsel for Respondent :- C.S.C., Sushil Kumar Pandey

Hon'ble Mahesh Chandra Tripathi, J.

Hon'ble Prashant Kumar, J.

1. Heard learned counsel for the parties.
2. Learned counsel for the petitioner submitted that pursuant to order dated 3.10.2023 passed by this Court, the grievance of the petitioner has been redressed as the earlier order has been withdrawn by the Electricity Department. He submits that the petitioner is ready to deposit the amount which has been finalized after fresh provisional assessment and prays that petitioner may be accorded permission to deposit the same in two installments. in terms of Clause 6.14 of the U.P. Electricity Supply Code, 2005 (in short "the Code"). In this backdrop, learned counsel for the petitioner fairly states that leave may be accorded to the petitioner to move appropriate application before the competent authority in terms of Clause 6.14 of the Code.
3. Considering the facts and circumstances, we are not inclined to keep the matter pending consideration. With the consent of parties, it is provided that in case the petitioner is inclined to clear the outstanding amount and moves an appropriate application to the Executive Engineer in terms of Clause 6.14 of the Code within two weeks from today, the same would be considered as per law by the Competent Authority in further two weeks time.
4. The writ petition stands **disposed of** accordingly.

Order Date :- 10.10.2023

Manish Himwan